



A COMMUNITY OF CHOICE

Planning and Development Department

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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council

From: Charles W. Bloom, AICP, Planning and Development Director
Seth C. Lloyd, Senior Planner

Subject: Outside User Agreement 3730 Rawlins Street, Laramie County, Wyoming (Located northwest of the intersection of Rawlins Street and McCann Avenue)

Date: May 22, 2023

Background:

The item for consideration is an *Outside User Agreement*. This is approved by resolution. Typically, a resolution is introduced and referred to committee prior to final consideration. If this resolution followed the standard process, final consideration would be June 12, 2023.

The applicant has indicated they an emergency exists due to the septic system being damaged by others which has resulted in an immediate health hazard. Specifically, the septic system's leach field was located on an adjacent parcel under different ownership and the new owner has damaged the leach field to a point where the system does not function. Staff requests that this item be considered upon introduction and not referred to committee due to the extenuating circumstances.

This property is 100% surrounded by City limits, and it is the City of Cheyenne City Council's stated goal to initiate the annexation of all County pockets. If an annexation petition were filed by the landowner by the next submittal deadline, May 24th, the annexation would not be complete until mid-August. Filing would only be possible if the applicant had managed to create the necessary annexation maps required for filing and paid all application fees (\$2,275). City-initiated annexations take time and staff resources to complete, and while the parcel will be annexed to the City in the next year or so, the health issue created by the removal of a portion of the septic system creates more urgency for this parcel. Even if City Staff suddenly focused on this parcel to annex, the timelines involved for either annexation scenario would mean it would be months before annexation was complete.

Approval of this resolution would allow for the property owner to immediately connect to City sewer. BOPU has indicated that the standard outside user agreement fee (150%) would still apply; however; the additional 1/3rd of the cost would be refunded to the landowner if the property is annexed by the City or the applicant within two years of resolution approval.

A reimbursement agreement for public infrastructure improvements for street and sewer was filed on this property on April 19, 2012. Connection to City sewer or landowner-initiated annexation is considered a development action under the prior reimbursement notice of infrastructure reimbursement. The 2012 infrastructure costs assigned to this lot were \$8,939.39 for streets and

\$4,704.84 for sewers. Payment will be subject to the computation of this value to be reimbursed by using the construction cost index for twenty (20) cities, as issued by the current Engineering News Record, at the date of construction compared to the construction cost index at the date of reimbursement. This is \$12,819.54 for streets and \$6,746.98 in today's dollars.

There are questions surrounding this property and the now separated northern portion, specifically, how they were subdivided. Staff's research leads us to believe the property at 3730 Rawlins Street is outside of City limits and was originally developed with a well and septic system. In 2008, a portion of the septic system servicing this address was annexed to the City (Ord #3821, bk 2078 pg 380), the annexation resulted in the creation of two tax parcels. The creation of two tax parcels created an assumption the two tax parcels could be sold off separately, and a previous landowner did indeed sell off the properties separately.

The proposed Governing Body review schedule is as follows:

- Introduction and final consideration May 22, 2023

Attachments:

1. Resolution

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION APPROVING SANITARY SEWER SERVICE, BY OUTSIDE USER AGREEMENT, FOR MYERS, AUSTIN ET AL, FOR THE PROPERTY AT 3730 RAWLINS STREET, LARAMIE COUNTY, WYOMING (LOCATED NORTHWEST OF THE INTERSECTION OF RAWLINS STREET AND MCCANN AVENUE)."

WHEREAS, Myers, Austin Et Al ("the Owner") is the owner of the property in Laramie County, Wyoming, more specifically described as: the southerly 127' of Lot 1, Block 1, Rogers Subdivision, Laramie County, Wyoming (per annexation Ord #3821, bk 2078 pg 380), addressed as 3730 Rawlins Street;

WHEREAS, the Owner's property is outside of City limits and was originally developed with a well and septic system;

WHEREAS, a portion of the Owner's septic system was on a parcel to the north of their current parcel which was annexed to the City in 2008 (Ord #3821, bk 2078 pg 380), said annexation resulting in the creation of two parcels for tax purposes;

WHEREAS, the creation of two tax parcels created an assumption the two tax parcels could be sold off separately, which assumption was acted upon by a previous landowner which did indeed sell off the properties separately;

WHEREAS, the owner of the northern parcel has removed the portion of the Owner's septic system on their property, creating a health hazard on the Owner's property;

WHEREAS, it is the City of Cheyenne City Council's stated goal to initiate the annexation of all County pockets (land 100% surrounded by City limits, but not within the City's jurisdiction). However, such annexations take time and resources to complete;

WHEREAS, the subject property is a County pocket (land 100% surrounded by City limits, but not within the City), therefore it is only a matter of time before the subject property will be annexed to the City;

WHEREAS, pursuant to Resolution No. 3577, BOPU was instructed to present to the Governing Body for its review any application for the provision of water and/or sanitary sewer services to any individual or entity outside the corporate limits of the City of Cheyenne;

WHEREAS, the Owner will approve and execute applicable Outside User Agreement(s) upon approval by the Governing Body pursuant to Resolution No. 3577 and application of the Owner if approved by the BOPU Board; and,

WHEREAS, the Governing Body has reviewed the potential for water and/or sanitary sewer services on the Owner's property and has determined that approval is in the best interest of the City of Cheyenne.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT, water and/or sanitary sewer services outside of the corporate limits of the City of Cheyenne for the property addressed as 3730 Rawlins Street, Laramie County, Wyoming, is hereby approved.

BE IT FURTHER RESOLVED, that BOPU and the Owner are authorized to approve and execute Outside User Agreement(s).

BE IT FURTHER RESOLVED, that BOPU is directed to refund 1/3 of the system development fees and taps fees if the property is annexed within two (2) years of the adoption of this Resolution.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2023.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk